

Standard Operating Procedure (SOP)

-

Clearance of Blister Copper under CTH 7402

1. Objective: To prescribe the procedure for examination, sampling, testing, and clearance of imported **Blister Copper classified under Customs Tariff Heading (CTH) 7402**.

2. Scope: This SOP shall apply to all consignments of Blister Copper imported and declared under CTH 7402 and cleared after warehousing provisions under Z Bill filing and subsequent T Bill clearance.

3. Examination Procedure:

- a. The imported goods shall be subjected to 100% examination at the time of warehousing.
- b. The Authorised Officer (Examination Role) shall verify:
 - i. Description of goods;
 - ii. Quantity and packing details;
 - iii. Marks and identification particulars of the packages;
 - iv. Physical verification of the goods w.r.t. the declared goods.

4. Sampling Procedure:

- a. Sampling shall be conducted at the time of warehousing examination.
- b. Three (03) sets of representative samples covering all packages/lots shall be drawn in tamper-proof sampling bags/containers.
- c. Sampling shall be carried out strictly in accordance with the Sampling Procedure/Standing Instructions issued by Chennai Customs from time to time.
- d. Proper sample identification marks, seal numbers, Bill of Entry details, and package references shall be recorded in the examination report.

5. Forwarding of Samples: The sampled sets shall be handled as follows:

- a. **First Sample Set** - One set of samples shall be forwarded to CRCL, Chennai or any other CRCL lab recommended by them, for testing and chemical analysis by "Fire Assay Test (Cupellation Method)" which is recognized under BIS standard IS 1418 and ISO 11426 for determination of precious metal content.
- b. **Second Sample Set** - One set of samples shall be forwarded simultaneously to a NABL-accredited Metallurgical Laboratory having Fire Assay Test facility.
- c. **Third Sample Set** - One set of samples shall be retained by the Authorised Officer under safe custody for future reference, dispute resolution, audit, or adjudication purposes.

6. Test Report Verification and Clearance:

- a. The Authorised Officer shall verify the test reports received from CRCL, Chennai or NABL-accredited Metallurgical Laboratory.
- b. Necessary action for assessment and clearance shall be taken based on the test results.
- c. The Out of Charge (OOC) of the Z Bill of Entry may be granted after receipt and verification of the test report from either CRCL, Chennai or NABL-accredited, whichever is received earlier.
- d. Further, T Bill of Entry may be filed for DTA clearance with compliance of Customs Rules/Regulations as applicable from time to time.

- e. Accordingly, T Bill may be assessed (in case of non-facilitated bill) and Out of Charge be given if the report received is in line with the declaration, findings of the test report and further complying with CCR/Instructions as per CTH.

7. Procedure in Case of Contradictory Test Reports:

- a. In cases where the findings of the CRCL report and the NABL-accredited laboratory report are contradictory on material parameters affecting classification, valuation, duty implication, the retained third sample shall be forwarded to a referral government laboratory or any other laboratory authorised by the competent authority for re-testing/final opinion.
- b. Further action regarding assessment, reassessment, adjudication, or review may be taken as deemed appropriate under the provisions of the Customs Act, 1962 and applicable instructions after receiving the report for third sample.

8. Retention and Custody of Third Sample:

- a. The third retained sample shall remain in safe custody of the Authorised Officer for a minimum period of one year from the date of Out of Charge (OOC) or till completion of adjudication, audit, investigation, appeal, or any related proceedings, whichever is later.
- b. After expiry of the prescribed retention period, disposal of the retained sample shall be undertaken as per extant departmental instructions and record retention policy.

9. Record Maintenance:

- a. All examination reports, sampling records, forwarding memos, seal details, and laboratory reports shall be maintained in the relevant import file/electronic record.
- b. Chain of custody for retained samples shall be properly documented.

10. Compliance: Any deviation from this SOP shall be subject to approval of the competent authority with reasons recorded in writing.

11. Instruction for IRMS: The above procedure may be incorporated as IRMS instructions for consignments of Blister Copper falling under CTH 7402.